

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1257

By: Hamilton of the Senate

and

Turner of the House

COMMITTEE SUBSTITUTE

An Act relating to the Uniform Controlled Dangerous Substances Act; amending 63 O.S. 2021, Section 2-101, as last amended by Section 8, Chapter 343, O.S.L. 2025 (63 O.S. Supp. 2025, Section 2-101), which relates to definitions; modifying terms; amending 63 O.S. 2021, Section 2-204, as last amended by Section 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp. 2025, Section 2-204), which relates to Schedule I; adding substance; amending 63 O.S. 2021, Section 2-208, which relates to Schedule III; adding substance; removing substance; conforming statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-101, as last amended by Section 8, Chapter 343, O.S.L. 2025 (63 O.S. Supp. 2025, Section 2-101), is amended to read as follows:

Section 2-101. As used in the Uniform Controlled Dangerous Substances Act:

1 1. "Acute pain" means pain, whether resulting from disease,
2 accidental trauma, intentional trauma, or other cause that the
3 practitioner reasonably expects to last only a short period of time.
4 Acute pain does not include chronic pain, pain being treated as part
5 of cancer care, hospice or other end-of-life care, or pain being
6 treated as part of palliative care;

7 2. "Administer" means the direct application of a controlled
8 dangerous substance, whether by injection, inhalation, ingestion or
9 any other means, to the body of a patient, animal or research
10 subject by:

11 a. a practitioner (or, in the presence of the
12 practitioner, by the authorized agent of the
13 practitioner), or

14 b. the patient or research subject at the direction and
15 in the presence of the practitioner;

16 3. "Agent" means a peace officer appointed by and who acts on
17 behalf of the Director of the Oklahoma State Bureau of Narcotics and
18 Dangerous Drugs Control or an authorized person who acts on behalf
19 of or at the direction of a person who manufactures, distributes,
20 dispenses, prescribes, administers or uses for scientific purposes
21 controlled dangerous substances but does not include a common or
22 contract carrier, public warehouser or employee thereof, or a person
23 required to register under the Uniform Controlled Dangerous
24 Substances Act;

1 4. "Anhydrous ammonia" means any substance that exhibits
2 cryogenic evaporative behavior and tests positive for ammonia;

3 5. "Board" means the Advisory Board to the Director of the
4 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

5 6. "Bureau" means the Oklahoma State Bureau of Narcotics and
6 Dangerous Drugs Control;

7 7. "Chronic pain" means pain that persists beyond the usual
8 course of an acute disease or healing of an injury. Chronic pain
9 may or may not be associated with an acute or chronic pathologic
10 process that causes continuous or intermittent pain over months or
11 years;

12 8. "Coca leaves" includes cocaine and any compound,
13 manufacture, salt, derivative, mixture or preparation of coca
14 leaves, except derivatives of coca leaves which do not contain
15 cocaine or ecgonine;

16 9. "Commissioner" or "Director" means the Director of the
17 Oklahoma State Bureau of Narcotics and Dangerous Drugs Control;

18 10. "Control" means to add, remove or change the placement of a
19 drug, substance or immediate precursor under the Uniform Controlled
20 Dangerous Substances Act;

21 11. "Controlled dangerous substance" means a drug, substance or
22 immediate precursor in Schedules I through V of the Uniform
23 Controlled Dangerous Substances Act or any drug, substance or
24 immediate precursor listed either temporarily or permanently as a

1 federally controlled substance. Any conflict between state and
2 federal law with regard to the particular schedule in which a
3 substance is listed shall be resolved in favor of state law;

4 12. "Counterfeit substance" means a controlled substance which,
5 or the container or labeling of which without authorization, bears
6 the trademark, trade name or other identifying marks, imprint,
7 number or device or any likeness thereof of a manufacturer,
8 distributor or dispenser other than the person who in fact
9 manufactured, distributed or dispensed the substance;

10 13. "Deliver" or "delivery" means the actual, constructive or
11 attempted transfer from one person to another of a controlled
12 dangerous substance or drug paraphernalia, whether or not there is
13 an agency relationship;

14 14. "Dispense" means to deliver a controlled dangerous
15 substance to an ultimate user or human research subject by or
16 pursuant to the lawful order of a practitioner, including the
17 prescribing, administering, packaging, labeling or compounding
18 necessary to prepare the substance for such distribution.

19 "Dispenser" is a practitioner who delivers a controlled dangerous
20 substance to an ultimate user or human research subject;

21 15. "Distribute" means to deliver other than by administering
22 or dispensing a controlled dangerous substance;

23 16. "Distributor" means a commercial entity engaged in the
24 distribution or reverse distribution of narcotics and dangerous

1 drugs and who complies with all regulations promulgated by the
2 federal Drug Enforcement Administration and the Oklahoma State
3 Bureau of Narcotics and Dangerous Drugs Control;

4 17. "Drug" means articles:

- 5 a. recognized in the official United States Pharmacopeia,
6 official Homeopathic Pharmacopoeia of the United
7 States, or official National Formulary, or any
8 supplement to any of them,
- 9 b. intended for use in the diagnosis, cure, mitigation,
10 treatment or prevention of disease in man or other
11 animals,
- 12 c. other than food, intended to affect the structure or
13 any function of the body of man or other animals, and
- 14 d. intended for use as a component of any article
15 specified in this paragraph;

16 provided, however, the term drug does not include devices or their
17 components, parts or accessories;

18 18. "Drug paraphernalia" means all equipment, products, and
19 materials of any kind which are used, intended for use, or fashioned
20 specifically for use in planting, propagating, cultivating, growing,
21 harvesting, manufacturing, compounding, converting, producing,
22 processing, preparing, testing, analyzing, packaging, repackaging,
23 storing, containing, concealing, injecting, ingesting, inhaling, or
24 otherwise introducing into the human body, a controlled dangerous

1 substance in violation of the Uniform Controlled Dangerous
2 Substances Act including, but not limited to:

- 3 a. kits used, intended for use, or fashioned specifically
4 for use in planting, propagating, cultivating,
5 growing, or harvesting of any species of plant which
6 is a controlled dangerous substance or from which a
7 controlled dangerous substance can be derived,
- 8 b. kits used, intended for use, or fashioned specifically
9 for use in manufacturing, compounding, converting,
10 producing, processing, or preparing controlled
11 dangerous substances,
- 12 c. isomerization devices used, intended for use, or
13 fashioned specifically for use in increasing the
14 potency of any species of plant which is a controlled
15 dangerous substance,
- 16 d. testing equipment used, intended for use, or fashioned
17 specifically for use in identifying or in analyzing
18 the strength, effectiveness, or purity of controlled
19 dangerous substances,
- 20 e. scales and balances used, intended for use, or
21 fashioned specifically for use in weighing or
22 measuring controlled dangerous substances,
- 23 f. diluent and adulterants, such as quinine
24 hydrochloride, mannitol, mannite, dextrose, and

1 lactose used, intended for use, or fashioned
2 specifically for use in cutting controlled dangerous
3 substances,

4 g. separation gins and sifters used, intended for use, or
5 fashioned specifically for use in removing twigs and
6 seeds from, or in otherwise cleaning or refining,
7 marijuana,

8 h. blenders, bowls, containers, spoons, and mixing
9 devices used, intended for use, or fashioned
10 specifically for use in compounding controlled
11 dangerous substances,

12 i. capsules, balloons, envelopes, and other containers
13 used, intended for use, or fashioned specifically for
14 use in packaging small quantities of controlled
15 dangerous substances,

16 j. containers and other objects used, intended for use,
17 or fashioned specifically for use in parenterally
18 injecting controlled dangerous substances into the
19 human body,

20 k. hypodermic syringes, needles, and other objects used,
21 intended for use, or fashioned specifically for use in
22 parenterally injecting controlled dangerous substances
23 into the human body, except as authorized by Section
24 2-1101 of this title,

1. objects used, intended for use, or fashioned specifically for use in ingesting, inhaling, or otherwise introducing marijuana, cocaine, hashish, or hashish oil into the human body, such as:
- (1) metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls,
 - (2) water pipes,
 - (3) carburetion tubes and devices,
 - (4) smoking and carburetion masks,
 - (5) roach clips, meaning objects used to hold burning material, such as a marijuana cigarette, that has become too small or too short to be held in the hand,
 - (6) miniature cocaine spoons and cocaine vials,
 - (7) chamber pipes,
 - (8) carburetor pipes,
 - (9) electric pipes,
 - (10) air-driven pipes,
 - (11) chillums,
 - (12) bongs, or
 - (13) ice pipes or chillers,
- m. all hidden or novelty pipes, and

1 n. any pipe that has a tobacco bowl or chamber of less
2 than one-half (1/2) inch in diameter in which there is
3 any detectable residue of any controlled dangerous
4 substance as defined in this section or any other
5 substances not legal for possession or use;

6 provided, however, the term drug paraphernalia shall not include
7 separation gins intended for use in preparing tea or spice, clamps
8 used for constructing electrical equipment, water pipes designed for
9 ornamentation in which no detectable amount of an illegal substance
10 is found or pipes designed and used solely for smoking tobacco,
11 traditional pipes of an American Indian tribal religious ceremony,
12 antique pipes that are thirty (30) years of age or older, or drug
13 testing strips possessed by a person for purposes of determining the
14 presence of fentanyl or a fentanyl-related compound;

15 19. "Drug-dependent person" means a person who is using a
16 controlled dangerous substance and who is in a state of psychic or
17 physical dependence, or both, arising from administration of that
18 controlled dangerous substance on a continuous basis. Drug
19 dependence is characterized by behavioral and other responses which
20 include a strong compulsion to take the substance on a continuous
21 basis in order to experience its psychic effects, or to avoid the
22 discomfort of its absence;

23 20. "Harm-reduction services" means programs established to:
24

- a. reduce the spread of infectious diseases related to injection drug use,
- b. reduce drug dependency, overdose deaths, and associated complications, and
- c. increase safe recovery and disposal of used syringes and sharp waste;

21. "Hazardous materials" means materials, whether solid, liquid, or gas, which are toxic to human, animal, aquatic, or plant life, and the disposal of such materials is controlled by state or federal guidelines;

22. "Home care agency" means any sole proprietorship, partnership, association, corporation, or other organization which administers, offers, or provides home care services, for a fee or pursuant to a contract for such services, to clients in their place of residence;

23. "Home care services" means skilled or personal care services provided to clients in their place of residence for a fee;

24. "Hospice" means a centrally administered, nonprofit or for-profit, medically directed, nurse-coordinated program which provides a continuum of home and inpatient care for the terminally ill patient and the patient's family. Such term shall also include a centrally administered, nonprofit or for-profit, medically directed, nurse-coordinated program if such program is licensed pursuant to the provisions of the Uniform Controlled Dangerous Substances Act.

1 A hospice program offers palliative and supportive care to meet the
2 special needs arising out of the physical, emotional and spiritual
3 stresses which are experienced during the final stages of illness
4 and during dying and bereavement. This care is available twenty-
5 four (24) hours a day, seven (7) days a week, and is provided on the
6 basis of need, regardless of ability to pay. "Class A" Hospice
7 refers to Medicare-certified hospices. "Class B" refers to all
8 other providers of hospice services;

9 25. "Imitation controlled substance" means a substance that is
10 not a controlled dangerous substance, which by dosage unit
11 appearance, color, shape, size, markings or by representations made,
12 would lead a reasonable person to believe that the substance is a
13 controlled dangerous substance, or is a drug intended solely for
14 veterinary purposes that is not a controlled dangerous substance and
15 is being used outside of the scope of practice or normal course of
16 business, as defined by the State Board of Veterinary Medical
17 Examiners, or is a federal Food and Drug Administration-approved
18 drug that is not a controlled dangerous substance and is being used
19 outside the scope of approval for illicit purposes such as
20 adulterating or lacing other controlled dangerous substances. In
21 the event the appearance of the dosage unit or use is not reasonably
22 sufficient to establish that the substance is an imitation
23 controlled substance, the court or authority concerned should
24 consider, in addition to all other factors, the following factors:

- a. statements made by an owner or by any other person in control of the substance concerning the nature of the substance, or its use or effect,
- b. statements made to the recipient that the substance may be resold for inordinate profit,
- c. whether the substance is packaged in a manner normally used for illicit controlled substances,
- d. evasive tactics or actions utilized by the owner or person in control of the substance to avoid detection by law enforcement authorities,
- e. prior convictions, if any, of an owner, or any other person in control of the object, under state or federal law related to controlled substances or fraud, and
- f. the proximity of the substances to controlled dangerous substances;

26. "Immediate precursor" means a substance which the Director has found to be and by regulation designates as being the principal compound commonly used or produced primarily for use, and which is an immediate chemical intermediary used, or likely to be used, in the manufacture of a controlled dangerous substance, the control of which is necessary to prevent, curtail or limit such manufacture;

27. "Initial prescription" means a prescription issued to a patient who:

- 1 a. has never previously been issued a prescription for
2 the drug or its pharmaceutical equivalent in the past
3 year, or
- 4 b. requires a prescription for the drug or its
5 pharmaceutical equivalent due to a surgical procedure
6 or new acute event and has previously had a
7 prescription for the drug or its pharmaceutical
8 equivalent within the past year.

9 When determining whether a patient was previously issued a
10 prescription for a drug or its pharmaceutical equivalent, the
11 practitioner shall consult with the patient and review the medical
12 record and prescription monitoring information of the patient;

13 28. "Isomer" means the optical isomer, except as used in
14 subsections C and F of Section 2-204 of this title and paragraph 4
15 of subsection A of Section 2-206 of this title. As used in
16 subsections C and F of Section 2-204 of this title, isomer means the
17 optical, positional, or geometric isomer. As used in paragraph 4 of
18 subsection A of Section 2-206 of this title, the term isomer means
19 the optical or geometric isomer;

20 29. "Laboratory" means a laboratory approved by the Director as
21 proper to be entrusted with the custody of controlled dangerous
22 substances and the use of controlled dangerous substances for
23 scientific and medical purposes and for purposes of instruction;

1 30. "Manufacture" means the production, preparation,
2 propagation, compounding or processing of a controlled dangerous
3 substance, either directly or indirectly by extraction from
4 substances of natural or synthetic origin, or independently by means
5 of chemical synthesis or by a combination of extraction and chemical
6 synthesis. "Manufacturer" includes any person who packages,
7 repackages or labels any container of any controlled dangerous
8 substance, except practitioners who dispense or compound
9 prescription orders for delivery to the ultimate consumer;

10 31. "Marijuana" means all parts of the Cannabis plant ~~Cannabis~~
11 ~~sativa L.~~, whether growing or not; the seeds thereof; the resin
12 extracted from any part of such plant; and every compound,
13 manufacture, salt, derivative, mixture, or preparation of such
14 plant, its seeds, or resin; tetrahydrocannabinols, neutral
15 compounds, and their corresponding acids, including synthetic
16 equivalents of the substances contained in the Cannabis plant or in
17 the resinous extractives of Cannabis, or synthetic substances,
18 derivatives, and their isomers with similar chemical structure and
19 pharmacological activity, but shall not include:

- 20 a. the mature stalks of such plant or fiber produced from
21 such stalks,
- 22 b. oil or cake made from the seeds of such plant,
23 including cannabidiol derived from the seeds of the
24 marijuana plant,

- c. any other compound, manufacture, salt, derivative, mixture or preparation of such mature stalks (except the resin extracted therefrom), including cannabidiol derived from mature stalks, fiber, oil or cake,
- d. the sterilized seed of such plant which is incapable of germination,
- e. for any person participating in a clinical trial to administer cannabidiol for the treatment of severe forms of epilepsy pursuant to Section 2-802 of this title, a drug or substance approved by the federal Food and Drug Administration for use by those participants,
- f. for any person or the parents, legal guardians or caretakers of the person who have received a written certification from a physician licensed in this state that the person has been diagnosed by a physician as having Lennox-Gastaut syndrome, Dravet syndrome, also known as severe myoclonic epilepsy of infancy, or any other severe form of epilepsy that is not adequately treated by traditional medical therapies, spasticity due to multiple sclerosis or due to paraplegia, intractable nausea and vomiting, appetite stimulation with chronic wasting diseases, the substance cannabidiol, a nonpsychoactive cannabinoid, found in

1 the Cannabis plant ~~Cannabis sativa L.~~ or any other
2 preparation thereof, that has a tetrahydrocannabinol
3 concentration not more than three-tenths of one
4 percent (0.3%) and that is delivered to the patient in
5 the form of a liquid,

6 g. any federal Food and Drug Administration-approved drug
7 or substance, or

8 h. industrial hemp, from the Cannabis plant ~~Cannabis~~
9 ~~sativa L.~~ and any part of such plant, whether growing
10 or not, with a combined delta-9 tetrahydrocannabinol
11 and tetrahydrocannabinolic acid concentration not more
12 than three-tenths of one percent (0.3%) on a dry-
13 weight basis, as tested using post-decarboxylation or
14 other similarly reliable methods, which shall only be
15 grown pursuant to the Oklahoma Industrial Hemp Program
16 and may be shipped intrastate and interstate;

17 32. "Medical purpose" means an intention to utilize a
18 controlled dangerous substance for physical or mental treatment, for
19 diagnosis, or for the prevention of a disease condition not in
20 violation of any state or federal law and not for the purpose of
21 satisfying physiological or psychological dependence or other abuse;

22 33. "Mid-level practitioner" means an Advanced Practice
23 Registered Nurse as defined and within parameters specified in
24 Section 567.3a of Title 59 of the Oklahoma Statutes, or a certified

1 animal euthanasia technician as defined in Section 698.2 of Title 59
2 of the Oklahoma Statutes, or an animal control officer registered by
3 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control
4 under subsection B of Section 2-301 of this title within the
5 parameters of such officer's duties under Sections 501 through 508
6 of Title 4 of the Oklahoma Statutes;

7 34. "Narcotic drug" means any of the following, whether
8 produced directly or indirectly by extraction from substances of
9 vegetable origin, or independently by means of chemical synthesis,
10 or by a combination of extraction and chemical synthesis:

- 11 a. opium, coca leaves and opiates,
- 12 b. a compound, manufacture, salt, derivative or
13 preparation of opium, coca leaves or opiates,
- 14 c. cocaine, its salts, optical and geometric isomers, and
15 salts of isomers,
- 16 d. ecgonine, its derivatives, their salts, isomers and
17 salts of isomers, and
- 18 e. a substance, and any compound, manufacture, salt,
19 derivative or preparation thereof, which is chemically
20 identical with any of the substances referred to in
21 subparagraphs a through d of this paragraph, except
22 that the words narcotic drug as used in Section 2-101
23 et seq. of this title shall not include decocainized
24

1 coca leaves or extracts of coca leaves, which extracts
2 do not contain cocaine or ecgonine;

3 35. "Opiate" or "opioid" means any Schedule II, III, IV or V
4 substance having an addiction-forming or addiction-sustaining
5 liability similar to morphine or being capable of conversion into a
6 drug having such addiction-forming or addiction-sustaining
7 liability. The terms do not include, unless specifically designated
8 as controlled under the Uniform Controlled Dangerous Substances Act,
9 the dextrorotatory isomer of 3-methoxy-n-methyl-morphinan and its
10 salts (dextromethorphan). The terms do include the racemic and
11 levorotatory forms;

12 36. "Opium poppy" means the plant of the species *Papaver*
13 *somniferum* L., except the seeds thereof;

14 37. "Palliative care" means a specialized medical service for
15 people of any age and at any stage of a serious illness or life-
16 altering medical event that focuses on navigating complex medical
17 decisions while providing patient autonomy and access to
18 information. Utilizing a holistic and interdisciplinary team
19 approach, palliative care addresses physical, intellectual,
20 emotional, social, and spiritual needs. Palliative care may be
21 provided in the inpatient, outpatient, or home care setting and
22 strives to improve quality of life for both the patient and the
23 family;

1 38. "Patient-provider agreement" means a written contract or
2 agreement that is executed between a practitioner and a patient
3 prior to the commencement of treatment for chronic pain using an
4 opioid drug as a means to:

- 5 a. explain the possible risk of development of physical
6 or psychological dependence in the patient and prevent
7 the possible development of addiction,
- 8 b. document the understanding of both the practitioner
9 and the patient regarding the patient-provider
10 agreement of the patient,
- 11 c. establish the rights of the patient in association
12 with treatment and the obligations of the patient in
13 relation to the responsible use, discontinuation of
14 use, and storage of opioid drugs, including any
15 restrictions on the refill of prescriptions or the
16 acceptance of opioid prescriptions from practitioners,
- 17 d. identify the specific medications and other modes of
18 treatment, including physical therapy or exercise,
19 relaxation, or psychological counseling, that are
20 included as a part of the patient-provider agreement,
- 21 e. specify the measures the practitioner may employ to
22 monitor the compliance of the patient including, but
23 not limited to, random specimen screens and pill
24 counts, and

1 f. delineate the process for terminating the agreement,
2 including the consequences if the practitioner has
3 reason to believe that the patient is not complying
4 with the terms of the agreement. Compliance with the
5 consent items described in this paragraph shall
6 constitute a valid, informed consent for opioid
7 therapy. The practitioner shall be held harmless from
8 civil litigation for failure to treat pain if the
9 event occurs because of nonadherence by the patient
10 with any of the provisions of the patient-provider
11 agreement;

12 39. "Peace officer" means a police officer, sheriff, deputy
13 sheriff, district attorney's investigator, investigator from the
14 Office of the Attorney General, or any other person elected or
15 appointed by law to enforce any of the criminal laws of this state
16 or of the United States;

17 40. "Person" means an individual, corporation, government or
18 governmental subdivision or agency, business trust, estate, trust,
19 partnership or association, or any other legal entity;

20 41. "Poppy straw" means all parts, except the seeds, of the
21 opium poppy, after mowing;

22 42. "Practitioner" means:

- 23 a. (1) a medical doctor or osteopathic physician,
24 (2) a dentist,

- 1 (3) a podiatrist,
2 (4) an optometrist,
3 (5) a veterinarian,
4 (6) an Advanced Practice Registered Nurse under the
5 supervision of a licensed medical doctor or
6 osteopathic physician, or a physician assistant,
7 (7) a scientific investigator, or
8 (8) any other person,

9 licensed, registered or otherwise permitted to
10 prescribe, distribute, dispense, conduct research with
11 respect to, use for scientific purposes or administer
12 a controlled dangerous substance in the course of
13 professional practice or research in this state, or

- 14 b. a pharmacy, hospital, laboratory or other institution
15 licensed, registered or otherwise permitted to
16 distribute, dispense, conduct research with respect
17 to, use for scientific purposes or administer a
18 controlled dangerous substance in the course of
19 professional practice or research in this state;

20 43. "Production" includes the manufacture, planting,
21 cultivation, growing or harvesting of a controlled dangerous
22 substance;

23 44. "Serious illness" means a medical illness or physical
24 injury or condition that substantially affects quality of life for

1 more than a short period of time. Serious illness includes, but is
2 not limited to, Alzheimer's disease or related dementias, lung
3 disease, cancer, heart failure, renal failure, liver failure, or
4 chronic, unremitting, or intractable pain such as neuropathic pain;

5 45. "State" means the State of Oklahoma or any other state of
6 the United States;

7 46. "Straw person" or "straw party", also known as a "front",
8 means a third party who:

- 9 a. is put up in name only to take part in a transaction
10 or otherwise is a nominal party to a transaction with
11 no actual control,
- 12 b. acts on behalf of another person to obtain title to
13 property and executes documents and instruments the
14 principal may direct respecting property, or
- 15 c. purchases property for another for the purpose of
16 concealing the identity of the real purchaser or to
17 accomplish some purpose otherwise in violation of the
18 Oklahoma Statutes;

19 47. "Surgical procedure" means a procedure that is performed
20 for the purpose of structurally altering the human body by incision
21 or destruction of tissues as part of the practice of medicine. This
22 term includes the diagnostic or therapeutic treatment of conditions
23 or disease processes by use of instruments such as lasers,
24 ultrasound, ionizing, radiation, scalpels, probes, or needles that

1 cause localized alteration or transportation of live human tissue by
2 cutting, burning, vaporizing, freezing, suturing, probing, or
3 manipulating by closed reduction for major dislocations or
4 fractures, or otherwise altering by any mechanical, thermal, light-
5 based, electromagnetic, or chemical means;

6 48. a. "Synthetic controlled substance" means a substance:

- 7 (1) the chemical structure of which is substantially
8 similar to the chemical structure of a controlled
9 dangerous substance in Schedule I or II,
- 10 (2) which has a stimulant, depressant, or
11 hallucinogenic effect on the central nervous
12 system that is substantially similar to or
13 greater than the stimulant, depressant, or
14 hallucinogenic effect on the central nervous
15 system of a controlled dangerous substance in
16 Schedule I or II, or
- 17 (3) with respect to a particular person, which such
18 person represents or intends to have a stimulant,
19 depressant, or hallucinogenic effect on the
20 central nervous system that is substantially
21 similar to or greater than the stimulant,
22 depressant, or hallucinogenic effect on the
23 central nervous system of a controlled dangerous
24 substance in Schedule I or II.

1 b. The designation of gamma-butyrolactone or any other
2 chemical as a precursor, pursuant to Section 2-322 of
3 this title, does not preclude a finding pursuant to
4 subparagraph a of this paragraph that the chemical is
5 a synthetic controlled substance.

6 c. Synthetic controlled substance does not include:

7 (1) a controlled dangerous substance,

8 (2) any substance for which there is an approved new
9 drug application,

10 (3) with respect to a particular person any
11 substance, if an exemption is in effect for
12 investigational use, for that person under the
13 provisions of Section 505 of the Federal Food,
14 Drug, and Cosmetic Act, 21 U.S.C., Section 355,
15 to the extent conduct with respect to such
16 substance is pursuant to such exemption, or
17 (4) any substance to the extent not intended for
18 human consumption before such an exemption takes
19 effect with respect to that substance.

20 d. Prima facie evidence that a substance containing
21 salvia divinorum has been enhanced, concentrated, or
22 chemically or physically altered shall give rise to a
23 rebuttable presumption that the substance is a
24 synthetic controlled substance;

1 49. "Tetrahydrocannabinols" ~~means~~ includes all substances that
2 have been chemically synthesized to emulate the
3 tetrahydrocannabinols of marijuana, specifically including any
4 tetrahydrocannabinols derived from industrial hemp; and

5 50. "Ultimate user" means a person who lawfully possesses a
6 controlled dangerous substance for the person's own use or for the
7 use of a member of the person's household or for administration to
8 an animal owned by the person or by a member of the person's
9 household.

10 SECTION 2. AMENDATORY 63 O.S. 2021, Section 2-204, as
11 last amended by Section 3, Chapter 308, O.S.L. 2024 (63 O.S. Supp.
12 2025, Section 2-204), is amended to read as follows:

13 Section 2-204. The controlled substances listed in this section
14 are included in Schedule I and include any material, compound,
15 mixture, or preparation that contains any quantity of the following
16 hallucinogenic substances, their salts, isomers, and salts of
17 isomers, unless specifically excepted, when the existence of these
18 salts, isomers, and salts of isomers is possible within the specific
19 chemical designation.

20 A. Any of the following opiates including their isomers,
21 esters, ethers, salts, and salts of isomers, esters, and ethers,
22 unless specifically excepted, when the existence of these isomers,
23 esters, ethers, and salts is possible within the specific chemical
24 designation:

- 1 1. Acetylmethadol;
- 2 2. Allylprodine;
- 3 3. Alphacetylmethadol;
- 4 4. Alphameprodine;
- 5 5. Alphamethadol;
- 6 6. Benzethidine;
- 7 7. Betacetylmethadol;
- 8 8. Betameprodine;
- 9 9. Betamethadol;
- 10 10. Betaprodine;
- 11 11. Clonitazene;
- 12 12. Dextromoramide;
- 13 13. Dextrorphan (except its methyl ether);
- 14 14. Diampromide;
- 15 15. Diethylthiambutene;
- 16 16. Dimenoxadol;
- 17 17. Dimepheptanol;
- 18 18. Dimethylthiambutene;
- 19 19. Dioxaphetyl butyrate;
- 20 20. Dipipanone;
- 21 21. Ethylmethylthiambutene;
- 22 22. Etonitazene;
- 23 23. Etoxeridine;
- 24 24. Furethidine;

- | | |
|----|----------------------------------|
| 1 | 25. Hydroxypethidine; |
| 2 | 26. Isotonitazene; |
| 3 | 27. Ketobemidone; |
| 4 | 28. Levomoramide; |
| 5 | 29. Levophenacylmorphane; |
| 6 | 30. Metonitazene; |
| 7 | 31. Morpheridine; |
| 8 | 32. N-desethyl isotonitazene; |
| 9 | 33. N-pyrrolidino protonitazene; |
| 10 | 34. Noracymethadol; |
| 11 | 35. Norlevorphanol; |
| 12 | 36. Normethadone; |
| 13 | 37. Norpipanone; |
| 14 | 38. Phenadoxone; |
| 15 | 39. Phenampromide; |
| 16 | 40. Phenomorphan; |
| 17 | 41. Phenoperidine; |
| 18 | 42. Piritramide; |
| 19 | 43. Proheptazine; |
| 20 | 44. Properidine; |
| 21 | 45. Protonitazene; |
| 22 | 46. Racemoramide; or |
| 23 | 47. Trimeperidine. |
| 24 | |

B. Any of the following opium derivatives, their salts, isomers, and salts of isomers, unless specifically excepted, when the existence of these salts, isomers, and salts of isomers is possible within the specific chemical designation:

1. Acetorphine;
2. Acetyldihydrocodeine;
3. Benzylmorphine;
4. Codeine methylbromide;
5. Codeine-N-Oxide;
6. Cyprenorphine;
7. Desomorphine;
8. Dihydromorphine;
9. Etorphine;
10. Heroin;
11. Hydromorphenol;
12. Methyldesorphine;
13. Methylhydromorphine;
14. Morphine methylbromide;
15. Morphine methylsulfonate;
16. Morphine-N-Oxide;
17. Myrophine;
18. Nicocodeine;
19. Nicomorphine;
20. Normorphine;

1 21. Phoclodine;

2 22. Thebacon;

3 23. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-acetamide

4 (Acetyl fentanyl);

5 24. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-butenamide

6 (Crotonyl fentanyl);

7 25. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-2-

8 furancarboxamide (Furanyl fentanyl);

9 26. N-phenyl-1-(2-phenylethyl)-4-piperidinamine (4-ANPP);

10 27. N-(1-phenethylpiperidin-4-yl)-N-

11 phenylcyclopropanecarboxamide (Cyclopropyl fentanyl); or

12 28. N-phenyl-N-[1-(2-phenylethyl)-4-piperidinyl]-butanamide

13 (Butyrl fentanyl).

14 C. Any material, compound, mixture, or preparation which

15 contains any quantity of the following hallucinogenic substances,

16 their salts, isomers, and salts of isomers, unless specifically

17 excepted, when the existence of these salts, isomers, and salts of

18 isomers is possible within the specific chemical designation:

19 1. Methcathinone;

20 2. 3, 4-methylenedioxy amphetamine;

21 3. 3, 4-methylenedioxy methamphetamine;

22 4. 5-methoxy-3, 4-methylenedioxy amphetamine;

23 5. 3, 4, 5-trimethoxy amphetamine;

24 6. Bufotenine;

- 1 7. Diethyltryptamine;
- 2 8. Dimethyltryptamine;
- 3 9. 4-methyl-2, 5-dimethoxyamphetamine;
- 4 10. Ibogaine;
- 5 11. Lysergic acid diethylamide;
- 6 12. Marijuana;
- 7 13. Mescaline;
- 8 14. N-benzylpiperazine;
- 9 15. N-ethyl-3-piperidyl benzilate;
- 10 16. N-methyl-3-piperidyl benzilate;
- 11 17. Psilocybin;
- 12 18. Psilocyn;
- 13 19. 2, 5 dimethoxyamphetamine;
- 14 20. 4 Bromo-2, 5-dimethoxyamphetamine;
- 15 21. 4 methoxyamphetamine;
- 16 22. Cyclohexamine;
- 17 23. Salvia Divinorum;
- 18 24. Salvinorin A;
- 19 25. Thiophene Analog of Phencyclidine. Also known as: 1-(1-(2-
- 20 thienyl) cyclohexyl) piperidine; 2-Thienyl Analog of Phencyclidine;
- 21 TCP, TCP;
- 22 26. Phencyclidine (PCP);
- 23 27. Pyrrolidine Analog for Phencyclidine. Also known as 1-(1-
- 24 Phenylcyclohexyl) - Pyrrolidine, PCPy, PHP;

- 1 28. 1-(3-trifluoromethylphenyl) piperazine;
- 2 29. Flunitrazepam;
- 3 30. B-hydroxy-amphetamine;
- 4 31. B-ketoamphetamine;
- 5 32. 2,5-dimethoxy-4-nitroamphetamine;
- 6 33. 2,5-dimethoxy-4-bromophenethylamine;
- 7 34. 2,5-dimethoxy-4-chlorophenethylamine;
- 8 35. 2,5-dimethoxy-4-iodoamphetamine;
- 9 36. 2,5-dimethoxy-4-iodophenethylamine;
- 10 37. 2,5-dimethoxy-4-methylphenethylamine;
- 11 38. 2,5-dimethoxy-4-ethylphenethylamine;
- 12 39. 2,5-dimethoxy-4-fluorophenethylamine;
- 13 40. 2,5-dimethoxy-4-nitrophenethylamine;
- 14 41. 2,5-dimethoxy-4-ethylthio-phenethylamine;
- 15 42. 2,5-dimethoxy-4-isopropylthio-phenethylamine;
- 16 43. 2,5-dimethoxy-4-propylthio-phenethylamine;
- 17 44. 2,5-dimethoxy-4-cyclopropylmethylthio-phenethylamine;
- 18 45. 2,5-dimethoxy-4-tert-butylthio-phenethylamine;
- 19 46. 2,5-dimethoxy-4-(2-fluoroethylthio)-phenethylamine;
- 20 47. 5-methoxy-N, N-dimethyltryptamine;
- 21 48. N-methyltryptamine;
- 22 49. A-ethyltryptamine;
- 23 50. A-methyltryptamine;
- 24 51. N, N-diethyltryptamine;

- 1 52. N, N-diisopropyltryptamine;
- 2 53. N, N-dipropyltryptamine;
- 3 54. 5-methoxy-a-methyltryptamine;
- 4 55. 4-hydroxy-N, N-diethyltryptamine;
- 5 56. 4-hydroxy-N, N-diisopropyltryptamine;
- 6 57. 5-methoxy-N, N-diisopropyltryptamine;
- 7 58. 4-hydroxy-N-isopropyl-N-methyltryptamine;
- 8 59. 3,4-Methylenedioxy-methcathinone (Mephylone);
- 9 60. 3,4-Methylenedioxy-pyrovalerone (MDPV);
- 10 61. 3-Methylmethcathinone (Metaphedrone);
- 11 62. 4-Methylmethcathinone (Mephedrone);
- 12 63. 4-methoxymethcathinone;
- 13 64. 4-Fluoromethcathinone;
- 14 65. 3-Fluoromethcathinone;
- 15 66. 1-(8-bromobenzo 1,2-b;4,5-b' difuran-4-yl)-2-aminopropane;
- 16 67. 2,5-Dimethoxy-4-chloroamphetamine;
- 17 68. 4-Methylethcathinone;
- 18 69. Pyrovalerone;
- 19 70. N,N-diallyl-5-methoxytryptamine;
- 20 71. 3,4-Methylenedioxy-N-ethylcathinone (Ethylone);
- 21 72. B-keto-N-Methylbenzodioxolylbutanamine (Butylone);
- 22 73. B-keto-Methylbenzodioxolylpentanamine (Pentylone);
- 23 74. Alpha-Pyrrolidinopentiophenone;
- 24 75. 4-Fluoroamphetamine;

1 76. Pentedrone;
2 77. 4'-Methyl-a-pyrrolidinohexaphenone;
3 78. 2,5-dimethoxy-4-(n)-propylphenethylamine;
4 79. 2,5-dimethoxyphenethylamine;
5 80. 1,4-Dibenzylpiperazine;
6 81. N,N-Dimethylamphetamine;
7 82. 4-Fluoromethamphetamine;
8 83. 4-Chloro-2,5-dimethoxy-N-(2-methoxybenzyl)phenethylamine
9 (25C-NBOMe);
10 84. 4-Iodo-2,5-dimethoxy-N-(2-methoxybenzyl)phenethylamine
11 (25I-NBOMe);
12 85. 4-Bromo-2,5-dimethoxy-N-(2-methoxybenzy)phenethylamine
13 (25B-NBOMe);
14 86. 1-(4-Fluorophenyl)piperazine;
15 87. Methoxetamine;
16 88. 3,4-dichloro-N[2-dimethylamino)cyclohexyl]-N-
17 methylbenzamide;
18 89. N-ethyl hexadrone;
19 90. Isopropyl-U-47700;
20 91. Para-fluorobutyl fentanyl;
21 92. Para-fluorofentanyl (pFF);
22 93. Fluoro isobutryl fentanyl;
23 94. 3-Hydroxy Phencyclidine (PCP);
24 95. 3-methoxy Phencyclidine (PCP);

1 96. Flualprazolam; ~~or~~

2 97. Flubromazolam; or

3 98. Tetrahydrocannabinols.

4 D. Unless specifically excepted or unless listed in a different
5 schedule, any material, compound, mixture, or preparation which
6 contains any quantity of the following substances having stimulant
7 or depressant effect on the central nervous system:

8 1. Fenethylline;

9 2. Mecloqualone;

10 3. N-ethylamphetamine;

11 4. Methaqualone;

12 5. Gamma-Hydroxybutyric Acid, also known as GHB, gamma-
13 hydroxybutyrate, 4-hydroxybutyrate, 4-hydroxybutanoic acid, sodium
14 oxybate, and sodium oxybutyrate;

15 6. Gamma-Butyrolactone (GBL) as packaged, marketed,
16 manufactured, or promoted for human consumption, with the exception
17 of legitimate food additive and manufacturing purposes;

18 7. Gamma Hydroxyvalerate (GHV) as packaged, marketed, or
19 manufactured for human consumption, with the exception of legitimate
20 food additive and manufacturing purposes;

21 8. Gamma Valerolactone (GVL) as packaged, marketed, or
22 manufactured for human consumption, with the exception of legitimate
23 food additive and manufacturing purposes;

1 9. 1,4 Butanediol (1,4 BD or BDO) as packaged, marketed,
2 manufactured, or promoted for human consumption with the exception
3 of legitimate manufacturing purposes; or

4 10. N-ethylpentylone.

5 E. 1. The following industrial uses of Gamma-Butyrolactone,
6 Gamma Hydroxyvalerate, Gamma Valerolactone, or 1,4 Butanediol are
7 excluded from all schedules of controlled substances under this
8 title:

- 9 a. pesticides,
- 10 b. photochemical etching,
- 11 c. electrolytes of small batteries or capacitors,
- 12 d. viscosity modifiers in polyurethane,
- 13 e. surface etching of metal coated plastics,
- 14 f. organic paint disbursements for water soluble inks,
- 15 g. pH regulators in the dyeing of wool and polyamide
16 fibers,
- 17 h. foundry chemistry as a catalyst during curing,
- 18 i. curing agents in many coating systems based on
19 urethanes and amides,
- 20 j. additives and flavoring agents in food, confectionary,
21 and beverage products,
- 22 k. synthetic fiber and clothing production,
- 23 l. tetrahydrofuran production,
- 24 m. gamma butyrolactone production,

- n. polybutylene terephthalate resin production,
- o. polyester raw materials for polyurethane elastomers and foams,
- p. coating resin raw material, and
- q. as an intermediate in the manufacture of other chemicals and pharmaceuticals.

2. At the request of any person, the Director of the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control may exempt any other product containing Gamma-Butyrolactone, Gamma Hydroxyvalerate, Gamma Valerolactone, or 1,4 Butanediol from being included as a Schedule I controlled substance if such product is labeled, marketed, manufactured, and distributed for legitimate industrial use in a manner that reduces or eliminates the likelihood of abuse.

3. In making a determination regarding an industrial product, the Director, after notice and hearing, shall consider the following:

- a. the history and current pattern of abuse,
- b. the name and labeling of the product,
- c. the intended manner of distribution, advertising, and promotion of the product, and
- d. other factors as may be relevant to and consistent with the public health and safety.

4. The hearing shall be held in accordance with the procedures of the Administrative Procedures Act.

1 F. Any material, compound, mixture, or preparation, whether
2 produced directly or indirectly from a substance of vegetable origin
3 or independently by means of chemical synthesis, or by a combination
4 of extraction and chemical synthesis, that contains any quantity of
5 the following substances, or that contains any of their salts,
6 isomers, and salts of isomers when the existence of these salts,
7 isomers, and salts of isomers is possible within the specific
8 chemical designation:

- 9 1. JWH-004;
- 10 2. JWH-007;
- 11 3. JWH-009;
- 12 4. JWH-015;
- 13 5. JWH-016;
- 14 6. JWH-018;
- 15 7. JWH-019;
- 16 8. JWH-020;
- 17 9. JWH-030;
- 18 10. JWH-046;
- 19 11. JWH-047;
- 20 12. JWH-048;
- 21 13. JWH-049;
- 22 14. JWH-050;
- 23 15. JWH-070;
- 24 16. JWH-071;

1	17.	JWH-072;
2	18.	JWH-073;
3	19.	JWH-076;
4	20.	JWH-079;
5	21.	JWH-080;
6	22.	JWH-081;
7	23.	JWH-082;
8	24.	JWH-094;
9	25.	JWH-096;
10	26.	JWH-098;
11	27.	JWH-116;
12	28.	JWH-120;
13	29.	JWH-122;
14	30.	JWH-145;
15	31.	JWH-146;
16	32.	JWH-147;
17	33.	JWH-148;
18	34.	JWH-149;
19	35.	JWH-150;
20	36.	JWH-156;
21	37.	JWH-167;
22	38.	JWH-175;
23	39.	JWH-180;
24	40.	JWH-181;

1	41.	JWH-182;
2	42.	JWH-184;
3	43.	JWH-185;
4	44.	JWH-189;
5	45.	JWH-192;
6	46.	JWH-193;
7	47.	JWH-194;
8	48.	JWH-195;
9	49.	JWH-196;
10	50.	JWH-197;
11	51.	JWH-198;
12	52.	JWH-199;
13	53.	JWH-200;
14	54.	JWH-201;
15	55.	JWH-202;
16	56.	JWH-203;
17	57.	JWH-204;
18	58.	JWH-205;
19	59.	JWH-206;
20	60.	JWH-207;
21	61.	JWH-208;
22	62.	JWH-209;
23	63.	JWH-210;
24	64.	JWH-211;

1	65.	JWH-212;
2	66.	JWH-213;
3	67.	JWH-234;
4	68.	JWH-235;
5	69.	JWH-236;
6	70.	JWH-237;
7	71.	JWH-239;
8	72.	JWH-240;
9	73.	JWH-241;
10	74.	JWH-242;
11	75.	JWH-243;
12	76.	JWH-244;
13	77.	JWH-245;
14	78.	JWH-246;
15	79.	JWH-248;
16	80.	JWH-249;
17	81.	JWH-250;
18	82.	JWH-251;
19	83.	JWH-252;
20	84.	JWH-253;
21	85.	JWH-262;
22	86.	JWH-292;
23	87.	JWH-293;
24	88.	JWH-302;

1	89.	JWH-303;
2	90.	JWH-304;
3	91.	JWH-305;
4	92.	JWH-306;
5	93.	JWH-307;
6	94.	JWH-308;
7	95.	JWH-311;
8	96.	JWH-312;
9	97.	JWH-313;
10	98.	JWH-314;
11	99.	JWH-315;
12	100.	JWH-316;
13	101.	JWH-346;
14	102.	JWH-348;
15	103.	JWH-363;
16	104.	JWH-364;
17	105.	JWH-365;
18	106.	JWH-367;
19	107.	JWH-368;
20	108.	JWH-369;
21	109.	JWH-370;
22	110.	JWH-371;
23	111.	JWH-373;
24	112.	JWH-386;

1	113.	JWH-387;
2	114.	JWH-392;
3	115.	JWH-394;
4	116.	JWH-395;
5	117.	JWH-397;
6	118.	JWH-398;
7	119.	JWH-399;
8	120.	JWH-400;
9	121.	JWH-412;
10	122.	JWH-413;
11	123.	JWH-414;
12	124.	JWH-415;
13	125.	CP-55, 940;
14	126.	CP-47, 497;
15	127.	HU-210;
16	128.	HU-211;
17	129.	WIN-55, 212-2;
18	130.	AM-2201;
19	131.	AM-2233;
20	132.	JWH-018 adamantyl-carboxamide;
21	133.	AKB48;
22	134.	JWH-122 N-(4-pentenyl) analog;
23	135.	MAM2201;
24	136.	URB597;

- 137. URB602;
- 138. URB754;
- 139. UR144;
- 140. XLR11;
- 141. A-796,260;
- 142. STS-135;
- 143. AB-FUBINACA;
- 144. AB-PINACA;
- 145. PB-22;
- 146. AKB48 N-5-Fluoropentyl;
- 147. AM1248;
- 148. FUB-PB-22;
- 149. ADB-FUBINACA;
- 150. BB-22;
- 151. 5-Fluoro PB-22; or
- 152. 5-Fluoro AKB-48.

G. In addition to those substances listed in subsection F of this section, unless specifically excepted or unless listed in another schedule, any material, compound, mixture, or preparation which contains any quantity of a synthetic cannabinoid found to be in any of the following chemical groups:

1. Naphthoylindoles: any compound containing a 3-(1-naphthoyl)indole structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl,

1 alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-
2 (N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-
3 2-pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,
4 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
5 halophenyl group, whether or not further substituted on the indole
6 ring to any extent, and whether or not substituted on the naphthyl
7 ring to any extent. Naphthoylindoles include, but are not limited
8 to:

- 9 a. 1-[2-(4-morpholinyl)ethyl]-3-(1-naphthoyl)indole (JWH-
10 200),
- 11 b. 1-(5-fluoropentyl)-3-(1-naphthoyl)indole (AM2201),
- 12 c. 1-pentyl-3-(1-naphthoyl)indole (JWH-018),
- 13 d. 1-butyl-3-(1-naphthoyl)indole (JWH-073),
- 14 e. 1-pentyl-3-(4-methoxy-1-naphthoyl)indole (JWH-081),
- 15 f. 1-propyl-2-methyl-3-(1-naphthoyl)indole (JWH-015),
- 16 g. 1-hexyl-3-(1-naphthoyl)indole (JWH-019),
- 17 h. 1-pentyl-3-(4-methyl-1-naphthoyl)indole (JWH-122),
- 18 i. 1-pentyl-3-(4-ethyl-1-naphthoyl)indole (JWH-210),
- 19 j. 1-pentyl-3-(4-chloro-1-naphthoyl)indole (JWH-398),
- 20 k. 1-pentyl-2-methyl-3-(1-naphthoyl)indole (JWH-007),
- 21 l. 1-pentyl-3-(7-methoxy-1-naphthoyl)indole (JWH-164),
- 22 m. 1-pentyl-2-methyl-3-(4-methoxy-1-naphthoyl)indole
23 (JWH-098),
- 24 n. 1-pentyl-3-(4-fluoro-1-naphthoyl)indole (JWH-412),

- 1 o. 1-[1-(N-methyl-2-piperidinyl)methyl]-3-(1-
2 naphthoyl)indole (AM-1220),
3 p. 1-(5-fluoropentyl)-3-(4-methyl-1-naphthoyl)indole
4 (MAM-2201), or
5 q. 1-(4-cyanobutyl)-3-(1-naphthoyl)indole (AM-2232);

6 2. Naphthylmethylinroles: any compound containing a 1H-indol-
7 3-yl-(1-naphthyl)methane structure with or without substitution at
8 the nitrogen atom of the indole ring by an alkyl, haloalkyl,
9 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,
10 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-
11 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-
12 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,
13 phenyl, or halophenyl group, whether or not further substituted on
14 the indole ring to any extent, and whether or not substituted on the
15 naphthyl ring to any extent. Naphthylmethylinroles include, but are
16 not limited to, (1-pentylindol-3-yl)(1-naphthyl)methane (JWH-175);

17 3. Naphthoylpyrroles: any compound containing a 3-(1-
18 naphthoyl)pyrrole structure with or without substitution at the
19 nitrogen atom of the pyrrole ring by an alkyl, haloalkyl,
20 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,
21 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-
22 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-
23 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,
24 phenyl, or halophenyl group, whether or not further substituted on

1 the pyrrole ring to any extent, and whether or not substituted on
2 the naphthyl group to any extent. Naphthoylpyrroles include, but
3 are not limited to:

4 a. 1-hexyl-2-phenyl-4-(1-naphthoyl)pyrrole (JWH-147),

5 b. 1-pentyl-5-(2-methylphenyl)-3-(1-naphthoyl)pyrrole
6 (JWH-370),

7 c. 1-pentyl-3-(1-naphthoyl)pyrrole (JWH-030), or

8 d. 1-hexyl-5-phenyl-3-(1-naphthoyl)pyrrole (JWH-147);

9 4. Naphthylideneindenes: any compound containing a 1-(1-
10 naphthylmethylene)indene structure with or without substitution at
11 the 3-position of the indene ring by an alkyl, haloalkyl,
12 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,
13 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-
14 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-
15 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,
16 phenyl, or halophenyl group, whether or not further substituted on
17 the indene group to any extent, and whether or not substituted on
18 the naphthyl group to any extent. Naphthylmethylindenes include,
19 but are not limited to, (1-[(3-pentyl)-1H-inden-1-
20 ylidene)methyl]naphthalene (JWH-176);

21 5. Phenylacetylindoles: any compound containing a 3-
22 phenylacetylindole structure with or without substitution at the
23 nitrogen atom of the indole ring by alkyl, haloalkyl, cyanoalkyl,
24 alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-

1 (N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-
2 2-pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,
3 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
4 halophenyl group, whether or not further substituted on the indole
5 ring to any extent, and whether or not substituted on the phenyl
6 ring to any extent. Phenylacetylindoles include, but are not
7 limited to:

- 8 a. 1-pentyl-3-(2-methoxyphenylacetyl)indole (JWH-250),
- 9 b. 1-(2-cyclohexylethyl)-3-(2-methoxyphenylacetyl)indole
10 (RCS-8),
- 11 c. 1-pentyl-3-(2-chlorophenylacetyl)indole (JWH-203),
- 12 d. 1-pentyl-3-(2-methylphenylacetyl)indole (JWH-251),
- 13 e. 1-pentyl-3-(4-methoxyphenylacetyl)indole (JWH-201), or
- 14 f. 1-pentyl-3-(3-methoxyphenylacetyl)indole (JWH-302);

15 6. Cyclohexylphenols: any compound containing a 2-(3-
16 hydroxycyclohexyl)phenol structure with or without substitution at
17 the 5-position of the phenolic ring by an alkyl, haloalkyl,
18 cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl,
19 halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-
20 morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-
21 morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl,
22 phenyl, or halophenyl group, and whether or not further substituted
23 on the cyclohexyl ring to any extent. Cyclohexylphenols include,
24 but are not limited to:

- 1 a. 5-(1,1-dimethylheptyl)-2-[(1R,3S)-3-
2 hydroxycyclohexyl]-phenol (CP-47,497),
3 b. 5-(1,1-dimethyloctyl)-2-[(1R,3S)-3-hydroxycyclohexyl]-
4 phenol (cannabicyclohexanol; CP-47,497 C8 homologue),
5 or
6 c. 5-(1,1-dimethylheptyl)-2-[(1R,2R)-5-hydroxy-2-(3-
7 hydroxypropyl)cyclohexyl]-phenol (CP 55, 940);

8 7. Benzoylindoles: any compound containing a 3-(benzoyl)indole
9 structure with or without substitution at the nitrogen atom of the
10 indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl,
11 cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-
12 2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-
13 pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,
14 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
15 halophenyl group, whether or not further substituted on the indole
16 ring to any extent, and whether or not substituted on the phenyl
17 group to any extent. Benzoylindoles include, but are not limited
18 to:

- 19 a. 1-pentyl-3-(4-methoxybenzoyl)indole (RCS-4),
20 b. 1-[2-(4-morpholinyl)ethyl]-2-methyl-3-(4-
21 methoxybenzoyl)indole (Pravadoline or WIN 48, 098),
22 c. 1-(5-fluoropentyl)-3-(2-iodobenzoyl)indole (AM-694),
23 d. 1-pentyl-3-(2-iodobenzoyl)indole (AM-679), or
24

e. 1-[1-(N-methyl-2-piperidinyl)methyl]-3-(2-iodobenzoyl)indole (AM-2233);

8. Cyclopropoylindoles: Any compound containing a 3-(cyclopropoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted in the indole ring to any extent, and whether or not substituted in the cyclopropoyl ring to any extent. Cyclopropoylindoles include, but are not limited to:

a. 1-pentyl-3-(2,2,3,3-tetramethylcyclopropoyl)indole (UR-144),

b. 1-(5-chloropentyl)-3-(2,2,3,3-tetramethylcyclopropoyl)indole (5Cl-UR-144), or

c. 1-(5-fluoropentyl)-3-(2,2,3,3-tetramethylcyclopropoyl)indole (XLR11);

9. Indole Amides: Any compound containing a 1H-Indole-3-carboxamide structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-

1 pyrrolidinyl)methyl, 1-(N-methyl-3- morpholinyl)methyl,
2 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
3 halophenyl group, whether or not substituted at the carboxamide
4 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,
5 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-
6 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-
7 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not
8 further substituted in the indole, adamantyl, naphthyl, phenyl,
9 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Indole
10 Amides include, but are not limited to:

- 11 a. N-(1-adamantyl)-1-pentyl-1H-indole-3-carboxamide
12 (2NE1),
- 13 b. N-(1-adamantyl)-1-(5-fluoropentyl)-1H-indole-3-
14 carboxamide (STS-135),
- 15 c. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-pentyl-1H-
16 indole-3-carboxamide (ADBICA),
- 17 d. N-(1-amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(5-
18 fluoropentyl)-1H-indole-3-carboxamide (5F-ADBICA),
- 19 e. N-(naphthalen-1-yl)-1-pentyl-1H-indole-3-carboxamide
20 (NNE1),
- 21 f. 1-(5-fluoropentyl)-N-(naphthalene-1-yl)-1H-indole-3-
22 carboxamide (5F-NNE1),
- 23 g. N-benzyl-1-pentyl-1H-indole-3-carboxamide (SDB-006),
24 or

1 h. N-benzyl-1-(5-fluoropentyl)-1H-indole-3-carboxamide

2 (5F-SDB-006);

3 10. Indole Esters: Any compound containing a 1H-Indole-3-
4 carboxylate structure with or without substitution at the nitrogen
5 atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl,
6 cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-
7 2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-
8 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,
9 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
10 halophenyl group, whether or not substituted at the carboxylate
11 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,
12 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-
13 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-
14 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not
15 further substituted in the indole, adamantyl, naphthyl, phenyl,
16 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Indole
17 Esters include, but are not limited to:

18 a. quinolin-8-yl 1-pentyl-1H-indole-3-carboxylate (PB-
19 22),

20 b. quinolin-8-yl 1-(5-fluoropentyl)-1H-indole-3-
21 carboxylate (5F-PB-22),

22 c. quinolin-8-yl 1-(cyclohexylmethyl)-1H-indole-3-
23 carboxylate (BB-22),
24

- d. naphthalen-1-yl 1-(4-fluorobenzyl)-1H-indole-3-carboxylate (FDU-PB-22), or
- e. naphthalen-1-yl 1-(5-fluoropentyl)-1H-indole-3-carboxylate (NM2201);

11. Adamantanoylindoles: Any compound containing an adamantanyl-(1H-indol-3-yl)methanone structure with or without substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or halophenyl group, whether or not further substituted in the indole ring to any extent, and whether or not substituted in the adamantyl ring to any extent. Adamantanoylindoles include, but are not limited to:

- a. adamantan-1-yl[1-[(1-methyl-2-piperidinyl)methyl]-1H-indol-3-yl]methanone (AM1248), or
- b. adamantan-1-yl-(1-pentyl-1H-indol-3-yl)methanone (AB-001);

12. Carbazole Ketone: Any compound containing (9H-carbazole-3-yl) methanone structure with or without substitution at the nitrogen atom of the carbazole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-

1 2-pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,
2 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
3 halophenyl group, with substitution at the carbon of the methanone
4 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,
5 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-
6 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-
7 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not
8 further substituted at the carbazole, adamantyl, naphthyl, phenyl,
9 pyrrole, quinolinyl, or cycloalkyl rings to any extent. Carbazole
10 Ketones include, but are not limited to, naphthalen-1-yl(9-pentyl-
11 9H-carbazol-3-yl)methanone (EG-018);

12 13. Benzimidazole Ketone: Any compound containing
13 (benzimidazole-2-yl) methanone structure with or without
14 substitution at either nitrogen atom of the benzimidazole ring by an
15 alkyl, haloalkyl, cyanoalkyl, alkenyl, cycloalkylmethyl,
16 cycloalkylethyl, benzyl, halobenzyl, 1-(N-methyl-2-
17 piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-
18 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl,
19 (tetrahydropyran-4-yl)methyl, 1-methylazepanyl, phenyl, or
20 halophenyl group, with substitution at the carbon of the methanone
21 group by an adamantyl, naphthyl, phenyl, benzyl, quinolinyl,
22 cycloalkyl, 1-amino-3-methyl-1-oxobutan-2-yl, 1-amino-3,3-dimethyl-
23 1-oxobutan-2-yl, 1-methoxy-3-methyl-1-oxobutan-2-yl, 1-methoxy-3,3-
24 dimethyl-1-oxobutan-2-yl or pyrrole group, and whether or not

further substituted in the benzimidazole, adamantyl, naphthyl, phenyl, pyrrole, quinolinyl, or cycloalkyl rings to any extent.

Benzimidazole Ketones include, but are not limited to:

- a. naphthalen-1-yl(1-pentyl-1H-benzo[d]imidazol-2-yl)methanone (JWH-018 benzimidazole analog), or
- b. (1-(5-fluoropentyl)-1H-benzo[d]imidazol-2-yl)(naphthalen-1-yl)methanone (FUBIMINA); and

14. Modified by Replacement: any compound defined in this subsection that is modified by replacement of a carbon with nitrogen in the indole, naphthyl, indene, benzimidazole, or carbazole ring.

H. Any prescription drug approved by the federal Food and Drug Administration under the provisions of Section 505 of the Federal Food, Drug, and Cosmetic Act, Title 21 of the United States Code, Section 355, that is designated, rescheduled, or deleted as a controlled substance under federal law by the United States Drug Enforcement Administration shall be excluded from Schedule I and shall be prescribed, distributed, dispensed, or used in accordance with federal law upon the issuance of a notice, final rule, or interim final rule by the United States Drug Enforcement Administration designating, rescheduling, or deleting as a controlled substance such a drug product under federal law, unless and until the State Board of Pharmacy takes action pursuant to Section 2-201 of this title. If the Board of Pharmacy does not take action pursuant to Section 2-201 of this title, the drug product

1 shall be deemed to be designated, rescheduled, or deleted as a
2 controlled substance in accordance with federal law and in
3 compliance with the Uniform Controlled Dangerous Substances Act.

4 SECTION 3. AMENDATORY 63 O.S. 2021, Section 2-208, is
5 amended to read as follows:

6 Section 2-208. The controlled substances listed in this section
7 are included in Schedule III.

8 A. Unless listed in another schedule, any material, compound,
9 mixture, or preparation, which contains any quantity of the
10 following substances or any other substance having a potential for
11 abuse associated with a stimulant or depressant effect on the
12 central nervous system:

13 1. Any drug product containing gamma-hydroxybutyric acid,
14 including its salts, isomers, and salts of isomers, for which an
15 application has been approved under Section 505 of the Federal Food,
16 Drug, and Cosmetic Act;

17 2. Any material, compound, mixture, or preparation which
18 contains any quantity of the following hormonal substances or
19 steroids, including their salts, isomers, esters and salts of
20 isomers and esters, when the existence of these salts, isomers,
21 esters, and salts of isomers and esters is possible within the
22 specific chemical designation:

- 23 a. Boldenone,
24 b. Chlorotestosterone,

- 1 c. Clostebol,
- 2 d. Dehydrochlormethyltestosterone,
- 3 e. Dihydrotestosterone,
- 4 f. Drostanolone,
- 5 g. Ethylestrenol,
- 6 h. Fluoxymesterone,
- 7 i. Formebolone,
- 8 j. Mesterolone,
- 9 k. Methandienone,
- 10 l. Methandranone,
- 11 m. Methandriol,
- 12 n. Methandrostenolone,
- 13 o. Methenolone,
- 14 p. Methyltestosterone, except as provided in subsection E
- 15 of this section,
- 16 q. Mibolerone,
- 17 r. Nandrolone,
- 18 s. Norethandrolone,
- 19 t. Oxandrolone,
- 20 u. Oxymesterone,
- 21 v. Oxymetholone,
- 22 w. Stanolone,
- 23 x. Stanozolol,
- 24 y. Testolactone,

z. Testosterone, except as provided in subsection E of
this section, and

aa. Trenbolone;

3. Any substance which contains any quantity of a derivative of
barbituric acid, or any salt of a derivative of barbituric acid;

4. Benzphetamine and its salts;

5. Buprenorphine;

6. Butalbital/acetaminophen/caffeine;

7. Chlorhexadol;

8. Chlorphentermine and its salts;

9. Clortermine;

10. Dronabinol;

11. Glutethimide;

~~11.~~ 12. Ketamine, its salts, isomers, and salts of isomers;

~~12.~~ 13. Lysergic acid;

~~13.~~ 14. Lysergic acid amide;

~~14.~~ 15. Mazindol;

~~15.~~ 16. Methyprylon;

~~16.~~ 17. Phendimetrazine;

~~17.~~ 18. Phenylacetone (P2P);

~~18.~~ 19. Sulfondiethylmethane;

~~19.~~ 20. Sulfonethylmethane;

~~20.~~ 21. Sulfonmethane;

~~21.~~ Tetrahydrocannabinols;

22. 1-Phenycyclohexylamine; or

23. 1-Piperidinocyclohexanecarbonitrile (PCC).

Livestock implants as regulated by the Federal Food and Drug Administration shall be exempt.

B. Nalorphine.

C. Unless listed in another schedule, any material, compound, mixture, or preparation containing limited quantities of any of the following narcotic drugs, or any salts thereof:

1. Not more than one and eight-tenths (1.8) grams of codeine or any of its salts, per one hundred (100) milliliters or not more than ninety (90) milligrams per dosage unit, with an equal or greater quantity of an isoquinoline alkaloid of opium;

2. Not more than one and eight-tenths (1.8) grams of codeine or any of its salts, per one hundred (100) milliliters or not more than ninety (90) milligrams per dosage unit, with one or more active, nonnarcotic ingredients in recognized therapeutic amounts;

3. Not more than one and eight-tenths (1.8) grams of dihydrocodeine or any of its salts, per one hundred (100) milliliters or not more than ninety (90) milligrams per dosage unit, with one or more active, nonnarcotic ingredients in recognized therapeutic amounts;

4. Not more than three hundred (300) milligrams of ethylmorphine or any of its salts, per one hundred (100) milliliters

1 or not more than fifteen (15) milligrams per dosage unit, with one
2 or more ingredients in recognized therapeutic amounts;

3 5. Not more than five hundred (500) milligrams of opium per one
4 hundred (100) milliliters or per one hundred (100) grams, or not
5 more than twenty-five (25) milligrams per dosage unit, with one or
6 more active, nonnarcotic ingredients in recognized therapeutic
7 amounts; or

8 6. Not more than fifty (50) milligrams of morphine or any of
9 its salts, per one hundred (100) milliliters or per one hundred
10 (100) grams with one or more active, nonnarcotic ingredients in
11 recognized therapeutic amounts.

12 D. The Board of Pharmacy may except by rule any compound,
13 mixture, or preparation containing any stimulant or depressant
14 substance listed in subsections A and B of this section from the
15 application of all or any part of the Uniform Controlled Dangerous
16 Substances Act if the compound, mixture, or preparation contains one
17 or more active medicinal ingredients not having a stimulant or
18 depressant effect on the central nervous system, and if the
19 admixtures are included therein in combinations, quantity,
20 proportion, or concentration that vitiate the potential for abuse of
21 the substances which have a stimulant or depressant effect on the
22 central nervous system.

23 E. The following hormonal substances or steroids are exempt
24 from classification as Schedule III controlled dangerous substances:

- 1 1. Estratest, containing 1.25 mg esterified estrogens and 2.5
2 mg methyltestosterone;
- 3 2. Estratest HS, containing 0.625 mg esterified estrogens and
4 1.25 mg methyltestosterone;
- 5 3. Premarin with Methyltestosterone, containing 1.25 mg
6 conjugated estrogens and 10.0 mg methyltestosterone;
- 7 4. Premarin with Methyltestosterone, containing 0.625 mg
8 conjugated estrogens and 5.0 mg methyltestosterone;
- 9 5. Testosterone Cypionate - Estradiol Cypionate injection,
10 containing 50 mg/ml Testosterone Cypionate; and
- 11 6. Testosterone Enanthate - Estradiol Valerate injection,
12 containing 90 mg/ml Testosterone Enanthate and 4 mg/ml Estradiol
13 Valerate.

14 SECTION 4. This act shall become effective November 1, 2026.

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